

do not include the payment of incumbrances on the settled property, and providing by s. 56, sub-s. 1, that powers given by the settlement to trustees are not to be prejudicially affected by the Act, enacts in sub-s. 2, that "the consent of the tenant for life shall, by virtue of the Act be necessary to the exercise by the trustees of the settlement or other persons of any power conferred by the settlement exercisable for any purpose provided for in the Act," and the question is whether this makes the consent of the tenant for life necessary to the exercise by the trustees of a power of selling or mortgaging arising under a charge of debts. Now in the first place it seems clear that, as the only power of mortgaging given by the Act is of a very limited nature, and for purposes wholly dissimilar from those for which the power under the charge of debts is exercisable, the trustees' power of *mortgaging* is unaffected by sub-s. 2, and may be exercised without the concurrence of the tenant for life. With reference to the power of *sale*, there is more difficulty, as the tenant for life has a general power of selling, and under s. 21, the proceeds of the sale may be applied in discharging the incumbrances affecting the inheritance of the settled land. The sale of the settled property or a part thereof for the purpose of paying off the incumbrances seems, therefore, to be strictly a "purpose provided for in the Act," and it is difficult construing the Act fairly to avoid the conclusion that the trustees cannot sell without the consent of the tenant for life. The result of this construction of the Act is without doubt inconvenient, and the view that the power of sale arising under a charge of debts is unaffected by the 56th section is supported by *weighty opin- [*471] ions (a), but until that view has received the sanction of the Court a purchaser could not be safely advised to accept a title from the trustees without the consent of the tenant for life (b).]

18. **Who must sign the receipt.** — As the trust for sale is a

[(a) See Wolstenholme and Turner's Settled Land Act, 2d Ed. p. 70.]

[(b) As to the meaning of the term "tenant for life," and the limited

owners who have the powers of a tenant for life, see sects. 2, 58 and 62; and see also *post*, chap. xxiii. s. 2, v.]